



FEDERAL PUBLIC SERVICE COMMISSION
COMPETITIVE EXAMINATION-2021
FOR RECRUITMENT TO POSTS IN BS-17
UNDER THE FEDERAL GOVERNMENT

Roll Number

LAW

TIME ALLOWED: THREE HOURS	PART-I (MCQS)	MAXIMUM MARKS = 20
PART-I(MCQS): MAXIMUM 30 MINUTES	PART-II	MAXIMUM MARKS = 80
NOTE: (i) Part-II is to be attempted on the separate Answer Book. (ii) Attempt ONLY FOUR questions from PART-II. ALL questions carry EQUAL marks. (iii) All the parts (if any) of each Question must be attempted at one place instead of at different places. (iv) Write Q. No. in the Answer Book in accordance with Q. No. in the Q.Paper. (v) No Page/Space be left blank between the answers. All the blank pages of Answer Book must be crossed. (vi) Extra attempt of any question or any part of the question will not be considered.		

PART-II

- Q. No. 2.** Define acquittal under the relevant provisions of the Code of Criminal Procedure 1898. Differentiate between acquittal and discharge. Can an accused be recharged if he is acquitted under section 249-A? **(20)**
- Q. No. 3.** What do you understand from the term "Police Report" under section 173? What is evidential value of the finding of Investigation Officer in Police Report? Explain the procedure provided under section 174 for investigation of death. **(20)**
- Q. No. 4.** What is *Qatl-e-amd*? How is it different from *Qatl shibh-i-amd* and *Qatl-i-khata*? In which cases *Qatl-e-amd* is not liable to Qisas. **(20)**
- Q. No. 5.** Critically analyze the inherent powers of Civil Court to amend judgments, decrees and orders. Which actions can be taken by the Civil Court under the supplemental proceedings to secure the ends of Justice? **(20)**
- Q. No. 6.** Differentiate between primary and secondary evidence. In which circumstances secondary evidence is admissible in legal proceedings? **(20)**
- Q. No. 7.** Define burden of proof. On whom this burden lies in legal proceedings? How burden of proof is assessed as to relationship in the cases of partners, landlord and tenant, principal and agent? **(20)**
- Q. No. 8.** Write short notes on the following. **(10 each) (20)**
- (a)** Plea of alibi
- (b)** Transfer of civil suits
